

PARECER/2025/37

I. Request

1. The Secretary of State for Internal Administration requested the National Data Protection Commission (CNPd) to issue an Opinion on the request for authorization to install a video surveillance system in Vilamoura, Municipality of Loulé, submitted to him by the National Republican Guard (GNR).
2. The request was presented under the terms of paragraph 3 of Article 5 of Law No. 95/2021, of December 29 (hereinafter Law 95/2021), which regulates the use and access by security forces and services and by the National Authority for Emergency and Civil Protection to video surveillance systems for capturing, recording, and processing images and sound.
3. The installation of a system consisting of 49 fixed cameras to be installed in 19 locations is intended, covering areas surrounding and accessing the Marina of Vilamoura, parish of Quarteira, municipality of Loulé.
4. The request is accompanied by five annexes:
 - x Annex A – Identification of the locations for the installation of the cameras;
 - x Annex B – Identification of the technical characteristics of the video surveillance equipment;
 - x Annex C – "Cooperation Protocol between the Municipality of Loulé and the National Republican Guard";
 - x Annex D – Data Protection Impact Assessment;
 - x Annex E – Access profiles to the video surveillance system.

II. Object of the Opinion to be issued, under the terms of Law No. 95/2021, of December 29

5. The CNPD assesses the request under the terms and for the purposes of paragraph 3 of Article 5 of Law No. 95/2021, of December 29 (hereinafter Law No. 95/2021), which regulates the use and access by security forces and services and by the National Authority for Emergency and Civil Protection to video surveillance systems for capturing, recording, and processing images and sound, in conjunction with subparagraphs b) and c) of Article 87 of the Administrative Procedure Code.
6. According to this legal provision, the scope of the opinion to be issued by the CNPD is limited to the compliance with the rules of security for the processing of collected data, specifically regarding the collection and processing of data (Article 16), procedural aspects in the case of recording facts with criminal relevance (Article 18), aspects related to the retention of recordings (Article 19), the rights of the data subject (Article 20), and the conditions for installation (Article 22).
7. Accordingly, it is the responsibility of the CNPD to verify whether all individuals appearing in recordings obtained by the video surveillance system are ensured the necessary conditions for exercising the rights of access and deletion, when applicable, and guaranteed the right to information, as well as to assess and express an opinion on the collection and processing of personal data, especially if carried out through analytical management of the data captured by applying technical criteria.

III. Video surveillance in public places in Vilamoura

A- Description

8. The submitted request refers to the installation of a video surveillance system in Vilamoura, consisting of 49 fixed cameras to be installed in 19 locations in the access area and surroundings of the Marina of Vilamoura (Annex A).
9. This Annex presents the delimitation of the geographical area covered and illustrates the angles/incidences of the cameras to be installed. The illustrative images present privacy masks.
10. The choice of locations is justified by the increase in crime, namely theft and disturbances of public order typical of nightlife areas, which, combined with the large influx of the public, causes social alarm and a feeling of insecurity, with repercussions beyond borders due to the high number of international tourists.
11. The 49 cameras include three distinct types of cameras: IP cameras, with a viewing angle of 360 degrees, day/night control, the ability to introduce privacy masks, configuration of integrated video analysis rules directly with motion detection capability, object typification, and event generation (Annex

B).

12. Camera type 1 – is an outdoor fixed camera, equipped with 4 image sensors; camera type 2, with multi-image sensors and PTZ function – PAN, TILT, and Zoom; and camera type 3, Bullet type camera, with a single sensor.

13. The locations for the installation of the 49 cameras are identified, and the area covered by the capture is indicated along with the type of camera to be installed at each location.

PAR/2024/72

2

14. The characteristics and technical functionalities of the “management server, redundant recording, and monitoring software” supporting the local server video surveillance system “management and monitoring software” and the “video wall” are described (Annex B).

15. The viewing of images will take place in the “Situation Room” of the Territorial Command of Faro. This room is reserved and access is conditioned to GNR military personnel accredited for this purpose and trained in the handling of the equipment, to whom access profiles will be assigned. Access will be subject to registration.

16. The transmission of images to the “Situation Room” is carried out through the National Internal Security Network (RNSI).

17. Data recording will be performed through a server to be installed in a suitable compartment at the GNR Territorial Post of Vilamoura, to which only GNR military personnel accredited for this purpose will have access, and this access will be recorded in the system.

18. It is stated that the video surveillance system:

a) will only allow the capture and recording of images collected when individuals enter the field of view of the system;

b) masks will be placed on the cameras to prevent the capture of images that directly and immediately affect the sphere of private life, through a configurable system to hide defined areas, not allowing the operator to display the contents;

c) sound recording will not be carried out, without prejudice to the installation and use of the system's operational mechanism known as “voice alert”;

d) will operate daily, 24 hours a day;

e) has anti-vandalism features and intrusion alarm systems;

f) responsibility for the conservation and processing of data is assigned to the Chief of the Operations, Training, and Public Relations Section of the Territorial Command of Faro of the GNR, in office;

g) the video surveillance system will not allow the capture of biometric data;

h) all procedures for informing the public about the existence of the system will be complied with;

i) various access profiles are provided for in Annex E, specifically:

PAR/2024/72

2v.

1- Administrator Profile (assigned to the person responsible for the conservation and processing of data, Chief of the Operations, Training, and Public Relations Section in office) responsible for the overall management of the system, supervision, and authorization of image extraction and the authorization of data analytics application;

2- Operator Profile (assigned to a GNR military personnel present in the situation room of the CTer of Faro) responsible for real-time viewing of images, with the possibility of highlighting and fixing a specific camera to monitor an occurrence in real time and, with prior authorization from the Officer/Service NCO of the Situation Room, proceeding with image extraction and consultation or activation of any video analytics rule;

3 – Consultation Profile (assigned to the Officer/Service NCO of the Situation Room, who has responsibilities for supervising and monitoring all operational activities of the Unit in office) allows for real-time viewing of images, “as well as, in duly substantiated cases and expressed in current legislation,” to consult or grant permission for the recorded images to be consulted “whenever there are suspicions or indications of a crime that require immediate decision-making in response to that

occurrence.”

This profile allows for the creation or permission for the creation of search rules using the video analytics tools provided by the system, in order to ensure a response to occurrences that arise in real time, and that require immediate decision-making in response to incidents that constitute a crime or civil protection actions that endanger the legal good “life,” with these consultations being recorded in a specific form and subsequently validated by the person responsible for the conservation and processing of data, Chief of the Operations, Training, and Public Relations Section in office.

Also, members of the Criminal Investigation Unit of Loulé have a consultation profile, which allows them access to recorded images and search using video analytics tools, whenever there is an interest at the level of criminal investigation, whenever requested by judicial authorities, or when they are aware of facts that may constitute a crime, with the extraction in these cases always being validated by the person responsible for the conservation and processing of data, Chief of the Operations, Training, and Public Relations Section in office.

PAR/2024/72

3

B- Analysis:

19. It is mentioned in the documentation submitted regarding the architecture of communications and image transmission that this will be done through the National Internal Security Network (RNSI) and that, to this extent, “all security policies in communications that this network encompasses” are ensured. However, it is not specified, and should be, what the concrete security policy measures are that benefit the system to guarantee the security of the video surveillance system in question. Thus, the CNPD recommends the clarification of the applicable security policies, ensuring total transparency regarding the protection protocols, encryption, and access controls implemented.

20. Reference is made to the existence of two “control and videowall” rooms, one installed at the Territorial Post of Vilamoura (with six monitors) and another at the Territorial Command of Faro (with four monitors). However, both in the AIPD and in other documents, a single location is identified: “The monitoring system will be installed in the Situation Room (SSit) of the Territorial Command of Faro (Cter Faro),” page 6 of Annex D. Therefore, it is necessary to clarify this situation.

21. Regarding User Profiles, it should be clarified whether the access profiles to the room and to the video surveillance system are the profiles of the system and equipment itself described in Annex A, or whether they are the RNSI access profiles.

22. Notwithstanding that the viewing of images is carried out exclusively by police agents, access to the system should be done through a personal and non-transferable mechanism in the case of the assignment of a code.

23. The extraction of images should be a privileged access functionality, and there should be a record of which cameras were accessed, the time interval of the extraction, as well as the identification of the person responsible for the execution.

24. The collection of vehicle license plates, which falls under a category of data, and the fact that among the configurable alarm events is the detection of a vehicle through the license plate, which subsequently allows for specific searches, constitutes data processing with the capture of all license plates in transit in the areas covered by the system.

25. Regarding the audit mechanisms for the use of the system: The retention period for activity records should be defined, and indicators should be established so that in audits, in the context of monitoring access security and the operations carried out, anomalous situations can be identified. It is expected that these records, which should contain data on the operations performed and not personal data, have an appropriate retention period to allow for the detection of patterns or the reconstruction of accesses and anomalous actions, under penalty of their purpose being undermined. Therefore, the CNPD recommends the retention of audit records for a period of two years.

Conclusions:

26. The CNPD, under the authority conferred to it by Law No. 95/2021 and in accordance with the terms and grounds set forth, recommends:

27. The clarification of the applicable security policies, ensuring total transparency regarding the

protection protocols, encryption, and access controls implemented.

28. Clarification on whether the access profiles to the room and to the video surveillance system are the profiles of the system and equipment described in Annex A, or whether they are the RNSI access profiles.

29. The extraction of images should be a privileged access functionality, and there should be a record of which cameras were accessed, the time interval of the extraction, as well as the identification of the person responsible for the execution.

30. The non-use of the license plate recognition functionality intended for locating vehicles, due to the absence of legal grounds for the processing of personal data resulting from that collection.

31. The retention period for activity records should be defined, and indicators should be established so that audit reports, in the context of monitoring access security and the operations carried out, allow for the identification of anomalous situations, recommending the retention of audit records for a period not less than two years.

Lisbon, April 29, 2025

Paula Meira Lourenço (President)

Signed by: PAULA CRISTINA MEIRA LOURENÇO

Date: 2025.04.29 22:30:10+01'00'

Certified by: Diário da República

Certified attributes: President - National Data Protection Commission